

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3081

By: Kelley

AS INTRODUCED

An Act relating to professions and occupations; amending 59 O.S. 2021, Sections 1820.11, 1820.12, and 1820.13, which relate to the Fire Extinguisher Licensing Act; lowering age qualification; removing requirements for license application; modifying application for licensing; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1820.11, is amended to read as follows:

Section 1820.11. A. Any person applying for a license to engage in a fire extinguisher industry business pursuant to the Fire Extinguisher Licensing Act shall provide evidence to the Fire Extinguisher Industry Committee that the individual within this state having direct supervision over the function and local operations of the fire extinguisher industry business or a branch thereof has the following qualifications:

1. The individual is at least ~~twenty-one (21)~~ eighteen (18) years of age;

1 2. The individual has not been declared by any court of
2 competent jurisdiction incompetent by reason of mental defect or
3 disease;

4 3. The individual is not a habitual user of intoxicating
5 liquors or habit-forming drugs;

6 4. The individual has not been discharged from the Armed
7 Services of the United States under other than honorable conditions;
8 and

9 5. The individual meets such other standards as may be
10 established by the State Fire Marshal Commission relating to
11 experience or knowledge of the fire extinguisher industry.

12 B. The applicant shall advise the Committee and furnish full
13 information on each individual described in subsection A of this
14 section of any conviction of a felony crime which substantially
15 relates to the occupation of an individual in a fire extinguisher
16 industry business and poses a reasonable threat to public safety for
17 which a full pardon has not been granted. The applicant shall
18 furnish a recent photograph of a type prescribed by the Committee
19 and two classifiable sets of fingerprints of such individual.

20 C. As used in this section:

21 1. "Substantially relates" means the nature of criminal conduct
22 for which the person was convicted has a direct bearing on the
23 fitness or ability to perform one or more of the duties or
24 responsibilities necessarily related to the occupation; and

1 2. "Poses a reasonable threat" means the nature of criminal
2 conduct for which the person was convicted involved an act or threat
3 of harm against another and has a bearing on the fitness or ability
4 to serve the public or work with others in the occupation.

5 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1820.12, is
6 amended to read as follows:

7 Section 1820.12. A. An application for a license shall
8 include:

9 1. The address of the principal office of the applicant and the
10 address of each branch office located within this state;

11 2. The name of each business location under which the applicant
12 intends to do business as a licensee; and

13 3. ~~A statement as to the extent and scope of the fire~~
14 ~~extinguisher industry business of the applicant and all other~~
15 ~~businesses in which the applicant is engaged in this state;~~

16 4. ~~A recent photograph of the applicant of a type prescribed by~~
17 ~~the State Fire Marshal Commission if the applicant is a sole~~
18 ~~proprietor, or a photograph of each officer and of each partner or~~
19 ~~shareholder who owns a twenty-five percent (25%) or greater interest~~
20 ~~in the applicant, if the applicant is an entity; and~~

21 5. Such other information, statements, or documents as may be
22 required by the State Fire Marshal Commission.

23 B. An applicant for an individual license shall provide such
24 documents, statements or other information as may be required by the

1 State Fire Marshal Commission, ~~including two classifiable sets of~~
2 ~~fingerprints of the applicant. The fingerprints may be used for a~~
3 ~~national criminal history record check as defined by Section 150.9~~
4 ~~of Title 74 of the Oklahoma Statutes.~~

5 C. Fees for license and license renewal issued pursuant to the
6 Fire Extinguisher Licensing Act shall be adopted by the State Fire
7 Marshal Commission pursuant to Section 1820.19 of ~~Title 59 of the~~
8 ~~Oklahoma Statutes~~ this title. An applicant shall pay the license
9 fee at the time the applicant makes application.

10 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1820.13, is
11 amended to read as follows:

12 Section 1820.13. A. 1. Upon making a proper initial fire
13 extinguisher business application, payment of the proper license fee

14 and certification of approval by the Fire Extinguisher Industry

15 Committee, the State Fire Marshal shall issue ~~a~~ an initial fire

16 extinguisher business license to the applicant. The fire

17 extinguisher business license shall be valid for a one-year term.

18 2. Upon making a proper initial individual application,

19 individual renewal application, or fire extinguisher business

20 renewal application, and payment of the proper license fee, the

21 State Fire Marshal shall issue all initial individual licenses,

22 individual renewal licenses, and fire extinguisher business renewal

23 licenses. These licenses shall be valid for a one-year term.

1 B. Renewal of a license shall not prohibit disciplinary
2 proceedings for an act committed prior to the renewal.

3 C. The State Fire Marshal Commission may adopt a system under
4 which licenses expire on various dates throughout the year. For any
5 change in such expiration dates, license fees shall be prorated on
6 an appropriate periodic basis.

7 SECTION 4. This act shall become effective November 1, 2026.

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